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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL MEETING

MAY 6, 2025

[4:30-5:32 PM PST]

>> MAYOR ISHII: THAT'S BETTER? OKAY. WE HAVE REACHED A QUORUM. WOW, THIS FEELS LIGHTER THAN NORMAL. I'M GOING TO CALL OUR MEETING TO ORDER. IT IS TUESDAY, MAY 6TH, 2025. AND I'M CALLING TO ORDER THE SPECIAL MEETING OF THE BERKELEY CITY COUNCIL. CLERK, CAN YOU PLEASE TAKE THE ROLL?

>> CLERK: COUNCILMEMBER KESARWANI IS ABSENT. TAPLIN IS ABSENT. BARTLETT IS ABSENT. TREGUB?

>> I. TREGUB: PRESENT.

>> CLERK: O’KEEFE.

>> S. O'KEEFE: HERE.

>> CLERK: BLACKABY.

>> B. BLACKABY: HERE.

>> CLERK: LUNAPARRA.

>> C. LUNAPARRA: HERE.

>> MAYOR ISHII: TODAY IS A SPECIAL MEETING AND A PRESENTATION AND DISCUSSION, BROWN ACT TRAINING FROM THE CITY ATTORNEY'S

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OFFICE. THANK YOU FOR BEING HERE. I'M GOING TO PASS IT OVER TO YOU, AND THANK YOU, BY THE WAY, TO THE STAFF THAT ARE HERE AS WELL.

>> STAFF: THANK YOU, MADAM MAYOR. THANK YOU FOR ALLOWING US TO SPEAK ON THE BROWN ACT, THE SUNSHINE LAWS ENSHRINED IN CALIFORNIA STATE LAW. WE HAVE OUR MINI VERSION OF IT.

>> MAYOR ISHII: PULL IT CLOSER TO YOU.

>> STAFF: I HAVE THE TEAM HERE. SAM HARVEY DEPUTY CITY ATTORNEY, SAM HARVEY WHO IS VERY FAMILIAR AND SUPER INGRAINED IN BROWN ACT ISSUES AND ADVISES US ON ISSUES ALL THE TIME AND STEVE HYLAS, BOTH ARE SECRETARIES TO THE OPEN GOVERNMENT COMMISSION. IT'S AN APPROPRIATE ROLL. MYSELF AND NATE DAHL. THE ASSISTANT TO THE CITY ATTORNEY AND DID A GREAT JOB PUTTING THE PRESENTATION TOGETHER FOR US. WE CAN DELVE RIGHT IN.

>> STAFF: ALL RIGHT. GOOD AFTERNOON. SO JUMPING RIGHT IN. THE BASICS OF THE BROWN ACT TO ENSURE THE PUBLIC'S BUSINESS IS DONE IN PUBLIC. ALL MEETINGS OF LEGISLATIVE BODIES ARE OPEN TO THE PUBLIC, ADEQUATELY NOTICED, STICK TO THE AGENDA AND ALLOW THE PUBLIC TO SPEAK ON AGENDA ITEMS AND ON ANY NON-AGENDA MATTER WITHIN THE COUNCIL'S JURISDICTION. ALL LEGISLATIVE BODIES OF THE CITY ARE COVERED BY THE BROWN ACT. THAT INCLUDES THE CITY COUNCIL, COUNCIL COMMITTEES, COMMISSIONS AND BOARDS, AND ANY BODIES CREATED BY CHARTER ORDINANCE, RESOLUTION OR FORMAL ACTION

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OF A LEGISLATIVE BODY. AN AD HOC COMMITTEE IS NOT A LEGISLATIVE BODY COVERED BY THE BROWN ACT. THIS IS A NARROW EXCEPTION. HAS TO BE LESS THAN A QUORUM OF THE LEGISLATIVE BODY, NO FORMALLY FIXED MEETING SCHEDULE, NO CONTINUING PURPOSE, SO NOT A STANDING COMMITTEE. AND IT'S ADVISORY TO THE PARENT BODY, THE COUNCIL. SO AGENDA REQUIREMENTS. AGENDAS MUST BE POSTED 72 HOURS BEFORE A REGULAR MEETING OR 24 HOURS BEFORE A SPECIAL MEETING. THE BERKELEY CITY COUNCIL REGULAR MEETING AGENDAS ARE POSTED 11 DAYS BEFORE THE MEETING, MORE THAN THE REQUIREMENT IN THE INTEREST OF GIVING THE PUBLIC ADVANCED NOTICE OF THE TERMS BEING DISCUSSED AT THE MEETING. THE NOTICE MUST INCLUDE THE TIME AND PLACE OF THE MEETING AND PROVIDE A GENERAL DESCRIPTION OF EACH ITEM OF BUSINESS, SUFFICIENT TO PROVIDE THE PUBLIC OF NOTICE WHAT WILL BE DISCUSSED AND WHAT ACTION MIGHT BE TAKEN. THE LEGISLATIVE BODY MUST NOT TAKE ACTION OR DISCUSS ANY ITEMS THAT ARE NOT ON A POSTED AGENDA. ADDITIONALLY, LIMITED EXCEPTIONS TO DISCUSSING AGENDA ITEMS. OUR EXCUSE ME, LIMITED EXCEPTIONS TO DISCUSSING ITEMS NOT ON THE AGENDA INCLUDE A BRIEF RESPONSE TO STATEMENTS MADE BY THE PUBLIC, BRIEF ANNOUNCEMENT OUR REPORTS DIRECTING STAFF TO PUT AN ISSUE ON A FUTURE AGENDA, AND NEED FOR IMMEDIATE ACTION WHICH CAME TO THE CITY'S ATTENTION AFTER THE AGENDA WAS POSTED AND THAT REQUIRES A TWO-THIRDS VOTE. AND EMERGENCY SITUATIONS WHERE THERE ARE SEVERE THREATS TO THE PUBLIC'S HEALTH

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OR SAFETY. WITH THAT, I'LL PASS IT TO SAM.

>> STAFF: THANK YOU, WITH ALL THESE GENERAL PROVISIONS OF THE BROWN ACT APPLYING WHENEVER AN ENTITY IS MEETING, CAN WE GO BACK ONE SLIDE PLEASE? NATE, CAN WE GO BACK ONE SLIDE PLEASE? A KEY QUESTION IS WHAT IS A MEETING. WHAT ACTIONS OF THE CITY COUNCIL WILL ACTUALLY TRIGGER A MEETING SUBJECT TO THE ACT. AND THE ACT DEFINES A MEETING BROADLY. A MEETING OCCURS WHENEVER A MAJORITY OF A LEGISLATIVE BODY GATHERS TO DISCUSS BUSINESS WITHIN THE SUBJECT MATTER JURISDICTION. A MAJORITY OF THE COUNCIL CAN BECOME MEETING. THIS CAN OCCUR AT SOCIAL GATHERINGS. MEETINGS OF RETREATS, WORKSHOPS, A VARIETY OF FORUM IN WHICH A MEETING COULD OCCUR EITHER INTENTIONALLY OR INADVERTENTLY. A MEETING CAN HAPPEN VIA WRITING, VIA PHONE OR EMAIL IF A MAJORITY OF COUNCIL IS DISCUSSING BUSINESS WITHIN THEIR JURISDICTION. THE BROWN ACT OUTLINES A COUPLE OF SPECIFIC EXCEPTIONS TO THE MEETING DEFINITION. ATTENDING A CONFERENCE OR OPEN AND PUBLIC EVENT HELD BY ANOTHER ENTITY IS NOT A MEETING AS LONG AS THE MAJORITY OF THE COUNCIL WHO ARE PRESENT STATISTIC TO THE SCHEDULED PROGRAM AND DON'T OTHERWISE TALK ABOUT BUSINESS WITHIN THEIR JURISDICTION. SOCIAL OR CEREMONIAL GATHERINGS ARE NOT A MEETING UNLESS YOU WERE TO DISCUSS MATTERS WITHIN YOU ARE JURISDICTION. AND THEN THE BROWN ACT SPECIFICALLY INDICATES ONE-ON-ONE COMMUNICATIONS ARE ALWAYS PERMITTED BUT WE HAVE TO HAVE MINDFUL

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OF CREATING SERIAL MEETINGS. SO SERIAL MEETING IS DEFINED AS AWHEN A MAJORITY OF THE LEGISLATIVE BODY USES A SERIES OF COMMUNICATIONS EITHER DIRECTORY OR INTERMEDIARIES, TO DISCUSS OUR TAKE ACTION ON ANY ITEM WITHIN THE SUBJECT MATTER JURISDICTION. UNLIKE MAYBE AN ORDINARY MEETING LIKE THIS EVENING, THE MEMBERS DON'T HAVE TO BE FACE-TO-FACE IN THE SAME ROOM AT THE SAME TIME BUT OVER TIME THROUGH A SERIES OF COMMUNICATIONS, A QUORUM HAS DISCUSSED OR DELIBERATED ON A TOPIC. SO THERE'S A COUPLE OF WAYS THIS CAN OCCUR. THE FIRST MODEL IS THE DAISY CHAIN MODEL, WHERE COUNCILMEMBER ONE TALKS TO COUNCILMEMBER TWO ON A TOPIC, AND COUNCILMEMBER MEMBER TWO TALKS TO THREE UNTIL A MAJORITY OF THE COUNCIL DISCUSSED A TOPIC. THE OTHERS KIND OF SLIGHTLY MORE COMPLICATED MODEL, ONE COUNCILMEMBER SERVES IN THE CENTER AND INDIVIDUALLY REACHING OUT TO OTHER COUNCILMEMBERS. SO COUNCILMEMBER "A" CALLS COUNCILMEMBER "B" TO TALK ABOUT AN ISSUE. COUNCILMEMBER "A" CALLS COUNCILMEMBER "B" TO TALK ABOUT THE SAME ISSUE AND SO FORTH UNTILP FIVE MEMBERS HAVE DISCUSSED A MATTER. AND YOU KNOW IT'S IMPORTANT TO NOTE FOR ALL SERIAL MEETINGS IN PARTICULAR WITH THIS MODEL, INTERMEDIARIES CAN CREATE THE BOND BETWEEN THESE COMMUNICATIONS. IN FACT, IN THIS HUB AND SPOKE MODEL YOU COULD HAVE THAT CENTRAL ROLE BY A CITY EMPLOYEE OR OFFICIAL, YOU COULD HAVE IT PLAYED BY A THIRD PARTY, COORDINATING

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COMMUNICATION AMONGST MEMBER HADS. IT'S SOMETHING TO BE MINDFUL. THIS MODEL CAN OCCUR EVEN WITHOUT A COUNCILMEMBER IN THE CENTRAL ROLE. NEXT SLIDE, PLEASE. SO YOU KNOW, AS WE NOTED EARLIER, A MEETING CAN OCCUR VIA TEXT, PHONE, IN-PERSON, EMAIL, ALL THESE DIFFERENT MEDIA. ONE THING YOU MAY HAVE NOTICED WHEN YOU RECEIVE MESSAGE FROM A STAFF MEMBER, THAT'S SENT TO THE ENTIRE COUNCIL YOU ARE BCC'D TO AVOID A COUNCILMEMBER INADVERTENTLY HITTING REPLY ALL AND RESPONDING TO THE ENTIRE COUNCIL VIA EMAIL CHAIN AND YOU HAVE A POTENTIAL MEETING THERE IN THAT EMAIL CHAIN. AND SO, ONE WAY TO KIND OF CONCEPTUALIZE THIS IN TERM OF BROWN ACT CIRCLES OR CHAINS, THE GROUP OF COUNCILMEMBERS YOU'VE DISCUSSED AN ITEM WITH WHEN YOU ARE COORDINATING WITH EACH OTHER ON A MATTER YOU HAVE CONFIRM IN YOUR CIRCLE AND CHAIN TO MAKE SURE THERE IS LESS THAN A MAJORITY. IT'S IMPORTANT TO BE AWARE OF WHO YOU ARE TALKING TO AND THE OTHER FOLKS ARE TALKING TO. SO YOU HAVE A SENSE OF HOW FAR THIS CHAIN GOES SO YOU ARE NOT CREATING A CHAIN CONVERSATION THAT ADDS UP TO A QUORUM OF THE COUNCIL. AND SO ONE EXAMPLE, SAY YOU HAD THREE COUNCILMEMBERS DRAFTING AN ITEM, IF TWO MEMBERS WERE TO CONFER WITH ONE ANOTHER MEMBER INDIVIDUALLY, THEY WOULD HAVE CREATED A SERIAL MEETING, OF FIVE MEMBERS. AND ONE THING TO NOTE, ONCE YOU CREATED YOUR GROUP, CHAIN OR CIRCLE, YOU CAN'T SORT OF SWAP PEOPLE IN AND OUT. IF THE TOTAL NUMBER OF PEOPLE IS GOING TO EQUAL A QUORUM OF THE

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COUNCIL. AND THEN, YOU KNOW, THE SERIAL MEETING PLAYS INTO HOW AUTHORSHIP AND CO AUTHORSHIP TAKE PLACE. COUNCILMEMBER ITEMS ARE LIMITED TO A MAXIMUM OF FOUR AUTHORS OR CO-SPONSORS. THE ITEM ITSELF WOULD BE AN IMPERMISSIBLE MEETING. AND SO, YOU KNOW, THAT GROUP OF PEOPLE DRAFTING AN ITEM ARE A CIRCLE OR CHAIN FOR THIS PURPOSE. THE COUNCIL POLICY COMMITTEES TAKE INTO ACCOUNT TO HAVE PREVENTIVE MEASURES TO PREVENT SERIAL MEETINGS. COUNCIL POLICY COMMITTEES CONSIST OF THREE MEMBERS, A QUORUM OF THE COUNCIL IS TWO, IF YOU ADD TWO PEOPLE TO A COMMITTEE, YOU WOULD HAVE FIVE SO YOU WOULD HAVE A QUORUM OF THE COUNCIL. THE GENERAL RULES TWO COMMITTEE MEMBERS CAN'T COMMUNICATE OUTSIDE OF A PUBLIC AMENDMENT. AN UNNOTICED MEETING OF THE SUBCOMMITTEE. IF TWO MEMBERS ARE AUTHORS OR CO-SPONSORS, ONE HAS TO RECUSE THEMSELVES SO THERE IS NOT A MAJORITY OF A COMPLETED IN. -- AND THEN ONLY ONE AUTHOR OR SPONSOR WHO IS NOT A MEMBER OF THE COMMITTEE VISITING TO YOU KNOW DISCUSS THE ITEM, CAN ATTEND BECAUSE THEN IF YOU HAD MORE ATTENDING YOU WOULD HAVE FIVE MEMBERS. SO ONE VISITING MEMBER PLUS THREE MEMBERS IS FOUR, YOU ARE SHY OF A QUORUM. AN ITEM CAN GO TO ONE COMMITTEE BEFORE FULL COUNCIL IF YOU HAVE TWO COMMITTEES YOU MIGHT HAVE AS MANY AS SIX WEIGHING IN BEFORE IT GOES TO THE FULL COUNCIL.

>> STAFF: SO IN 2020, THE STATE LEGISLATURE ADDED SPECIFIC RULES ABOUT SOCIAL MEDIA TO THE BROWN ACT. AND THE BASIC CONCEPT OF IT

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IS FAMILIAR, IT'S COUNCILMEMBERS CAN COMMUNICATE WITH THE PUBLIC INDIVIDUALLY ON SOCIAL MEDIA TO ANSWER QUESTIONS, TO GIVE INFORMATION, TO SOLICIT INFORMATION. BUT COUNCILMEMBERS CANNOT TALK TO EACH OTHER ON SOCIAL MEDIA. AND SO, THINGS TO AVOID HERE ARE FRIENDING OTHER COUNCILMEMBERS ON SOCIAL MEDIA, LIKING COMMENTS, MAKING COMMENTS ON POSTS, THESE CAN INADVERTENTLY CREATE A SERIAL MEETING. AND ON THAT NOTE, IT'S ADVISABLE TO KEEP COMMUNICATIONS WITH THE PUBLIC GENERAL AS OPPOSED TO BEING ABOUT SPECIFIC AGENDA ITEMS THAT ARE UPCOMING. JUST BECAUSE OF THE FEAR OF INADVERTENTLY CREATING A HUB AND SPOKE SERIAL MEETING KIND OF WITH THE MEDIA AS THE HUB. SO NOW I'M GOING TO TALK ABOUT TELECONFERENCING AND THESE ARE THE RULES IN THE BROWN ACT FOR TELECONFERENCING ARE NOTORIOUSLY COMPLICATED. IF YOU HAVE QUESTIONS, PLEASE ASK ME. BUT THIS IS SET UP AS WHAT THE GENERAL RULES ARE AND THEN I'LL GO THROUGH THE EXCEPTIONS. AND SO, THE GENERAL RULE IS THAT BROWN ACT HAS HAD RULES FOR DECADES ABOUT TELECONFERENCING, AND THESE RULES ARE CONTEMPLATING MULTIPLE MEETING LOCATIONS IN BERKELEY, EACH OF WHICH IS OPEN TO THE PUBLIC. AND SO, THE RULES FITTINGLY REQUIRE THAT EACH OF THE REMOTE LOCATIONS WILL BE LISTED IN THE AGENDA, WILL BE OPEN TO THE PUBLIC, AND AGENDAS POSTED AT ALL REMOTE LOCATIONS. AND SO, TO FOLLOW THESE RULES, COUNCILMEMBERS ARE REQUIRED TO POST THEIR REMOTE LOCATIONS ON THE AGENDA AND OPEN TO THE PUBLIC. AND

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OBVIOUSLY, THIS CAN BE SENSITIVE IF YOUR REMOTE LOCATION IS SENSITIVE, IF IT'S A PRIVATE PLACE. AND SO, THERE ARE SOME EXCEPTIONS IN THE BROWN ACT OF THE AVAILABLE AND SPECIFIC SITUATIONS I'LL GO THROUGH. SO IN THE WAKE OF COVID, THE STATE LEGISLATURE DEVELOPED SOME NEW RULES ALLOWING MEMBERS OF LIVE BODIES TO PARTICIPATE REMOTELY WITHOUT HAVING TO OPEN THEIR REMOTE LOCATION TO THE PUBLIC. BUT THESIS ARE NARROWLY CONFINED TO CERTAIN CIRCUMSTANCES, DEFINED IN THE BROWN ACT AS JUST CAUSE OR EMERGENCY CIRCUMSTANCES AND THEY ARE LIMITED IN NUMBER. SO YOU CAN DO JUST CAUSE UP TO TWO MEETINGS A YEAR. AND EMERGENCY CIRCUMSTANCES UP TO SEVEN TIMES A YEAR. AND ESSENTIALLY, TO QUALIFY FOR THESE EXCEPTIONS YOU -- IT WOULDN'T REQUIRE -- IT WOULD REQUIRE AN ILLNESS, A FAMILY CARE NEED OR A DISABILITY. TRAVEL ON AN OFFICIAL BUSINESS IS ANOTHER OPTION. IN THESE SITUATIONS, YOU CAN PARTICIPATE REMOTELY FROM HOME. BUT ONLY IF A QUORUM OF THE COUNCIL IS PHYSICALLY PRESENT IN PERSON. FOR DISABILITIES, YOU HAVE AN OPTION OF DOING THE JUST CAUSE PARTICIPATION, IF IT'S A TEMPORARY SITUATION AND IT COMES UP AT THE LAST MINUTE OR PURSUING AN A.D.A. ACCOMMODATION, WHICH I WILL TALK ABOUT NOW. SO FOR PURPOSES OF THE A.D.A., UNDER OUR NEW POLICY THAT WE ENACTED LAST YEAR, COUNCILMEMBERS CAN PARTICIPATE REMOTELY AS AN ACCOMMODATION FOR DISABILITY. THIS WOULDN'T HAVE ANY SPECIFIC TIME LIMITS, IT WOULD BE INDIVIDUALLY

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-- INDIVIDUALIZED BASED ON YOUR NEEDS. AND AS PART OF THAT PROCESS, YOU CAN REQUEST THE CITY WAIVE THE BROWN ACT REQUIREMENTS ABOUT THE POSTING YOUR ADDRESS AND OPENING IT TO THE PUBLIC FOR DISABILITY-RELATED REASON. IF YOU HAVE ANY QUESTIONS OR YOU WANT TO PURSUE AN ACCOMMODATION, YOU CAN CONTACT THE A.D.A. COORDINATOR OR OUR OFFICE OR BOTH TO DETERMINE ACCOMMODATIONS THAT MIGHT BE NEEDED.

>> JUST A QUICK NOTE ON THAT NEW POLICY THAT STEVE MENTIONED, STEVE ACTUALLY HELPED DRAFT THAT AND BRING IT TO FRUITION. JUST WANTED TO GIVE HIM CREDIT FOR THAT.

>> MAYOR ISHII: THANK YOU FOR DOING THAT.

>> STAFF: YES, OF COURSE. FINALLY, THERE IS AN EXCEPTION IN EMERGENCIES IF THE GOVERNOR HAS DECLARED A STATE OF EMERGENCY THAT THEN THE COUNCIL COULD MEET REMOTELY. THIS OBVIOUSLY IS AN UNCOMMON SITUATION BUT IT OCCURRED DURING COVID AND IT PRESUMABLY COULD OCCUR DURING A FUTURE PANDEMIC OR OTHER EMERGENCY SITUATION. NEXT SLIDE. OKAY, SO BACK TO THE TYPICAL IN-PERSON MEETING. SO THE BROWN ACT REQUIRES TWO COMMENT PERIODS FOR GENERAL MEETINGS. ONE IS GENERAL MATTERS WITHIN THE JURISDICTION OF THE BODY AND THE OTHER IS COMMENT ON SPECIFIC AGENDA ITEMS. AND FOR SPECIAL MEETINGS, THAT GENERAL COMMENT PERIOD ISN'T REQUIRED. THE CITY COUNCIL'S RULES OF PROCEDURE ACTUALLY GO FURTHER BUT BY ALLOWING FOR ZOOM PUBLIC COMMENT AND

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COMMENT FROM PUBLIC EMPLOYEE UNIONS. SO THEY GO FURTHER THAN THE BROWN ACT REQUIRES. OUTSIDE OF THE BROWN ACT, THERE ARE ALSO SOME FIRST LIMITATIONS JUST TO FLAG HERE. UNDER ESTABLISHED LAW, THE COUNCIL IS ALLOWED TO AND HAS ADOPTED REASONABLE REGULATIONS ABOUT PROHIBITING DISRUPTIVE BEHAVIOR AND RULES OF DECORUM. ACTIVITIES LIKE SHOUTING, BOOING, STOPPING OTHERS FROM SPEAKING AS OPPOSED TO EXPRESSING OPINIONS YOU MIGHT NOT LIKE, IT'S IMPORTANT THE LEGISLATIVE BODY NOT PROHIBIT SPEECH BASED ON VIEWPOINT. AND THERE ARE A FEW CATEGORIES OF SITUATIONS WHERE COUNCIL CAN MEET PRIVATELY AS YOU ARE AWARE OF, THE -- THESE ARE SPECIFIC AND PRECISELY DEFINED EXCEPTIONS IN THE BROWN ACT. AND THIS COUNCIL CANNOT MEET IN CLOSED SESSION OUTSIDE OF THESE SPECIFIC SITUATION. THE SITUATIONS ARE THE STANDARD ONES ARE LITIGATION, LABOR NEGOTIATIONS, REAL ESTATE NEGOTIATIONS, OR SECURITY THREATS. IN THE CASE OF LITIGATION, IT CAN BE EITHER LITIGATION THAT'S ACTIVE, THAT'S CURRENTLY IN COURT OR LITIGATION THAT'S THREATENED. BUT IF IT'S A THREATENED LITIGATION, IT NEEDS TO BE SUFFICIENTLY DEFINED AND DEFINITE TO QUALIFY. IT'S A BIT OF A CASE BY CASE ANALYSIS. AND THEN, THIRD THE OPEN GOVERNMENT ORDINANCE, CERTAIN ACTIONS NEED TO BE REPORTED OUT AFTER THE CLOSED SESSION AND THEN ALSO AT THE NEXT PUBLIC MEETING. AS FAR AS ENFORCEMENT IS CONCERNED, THERE ARE TWO BIG ONES. SO FIRST OF ALL, IS A LAWSUIT EITHER TO INVALIDATE

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CITY ACTIONS AFTER THE FACT. THE SECOND IS TO STOP VIOLATIONS OF THE BROWN ACT. IT'S IMPORTANT TO AVOID THE VIOLATIONS BECAUSE INVALIDATING ACTS OF THE CITY COUNCIL CAN REQUIRE YOU TO REDO BUSINESS THAT YOU HAVE ALREADY COMPLETED. AND NOTE ALSO THAT THERE IS A CRIMINAL ENFORCEMENT PROVISION OF THE BROWN ACT FOR SITUATIONS WHERE A MEMBER HAS INTENTIONALLY CONCEALED INFORMATION FROM PUBLIC. PROSECUTION IS RARE BUT THE DISTANCE OF THIS PROVISION EMPHASIZES THE IMPORTANCE OF ERRING ON THE SIDE OF GREATER PUBLIC ACCESS. YOU CAN FILE A COMPLAINT WITH THE OPEN GOVERNMENT COMMISSION, WHICH WE'LL GO TO ME OR HIM.

>> STAFF: THANK YOU, STEVE. SO JUST TO RECAP SOME BASIC REMINDERS THAT UNDER THE BROWN ACT, CAN YOU HEAR ME OKAY? OKAY. UNDER THE BROWN ACT, MEETINGS MUST BE NOTICED AND OPEN TO THE PUBLIC. THIS ALLOWS THE PUBLIC TO OBSERVE AND PARTICIPATE THE COUNCIL'S CONDUCT OF PUBLIC BUSINESS AND A MEETING IS DEFINED AS A GATHERING OF THE MAJORITY OF THE COUNCIL TO CONSIDER A MATTER WITHIN THE COUNCIL'S JURISDICTION. SOME COMMON MISCONCEPTIONS ABOUT MEETINGS, THE FORM AND FORMALITY OF THE GATHERING DOES NOT MATTER. THE MEMBER NEED NOT REACH A DECISION OR CONSENSUS FOR THE GATHERING FOR IT TO BE A MEETING. SOMETIMES THERE IS A MISCONCEPTION, IF YOU DISCUSS SOMETHING BUT DIDN'T VOTE IT'S FINE, THAT'S NOT THE CASE. EVEN PRELIMINARY DISCUSSIONS CAN VIOLATE THE BROWN ACT. A MEETING NEED NOT BE THE SAME TIME OR

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LOCATION BECAUSE THE BROWN ACT PROHIBITS SERIAL MEETINGS AS WELL. AND ALSO, A SERIAL MEETING HAPPENS WHEN A MAJORITY OF THE COUNCIL USES A SERIES OF COMMUNICATIONS DIRECTLY OR INDIRECTLY THROUGH INTERMEDIARIES, FOR INSTANCE, THEIR STAFF, TO DISCUSS, DELIBERATE OR ACT ON ANY MATTER WITHIN THE COUNCIL'S JURISDICTION. HERE WE'RE PROVIDING A LIST OF SOME REAL-LIFE EXAMPLES WE WERE ABLE TO FIND STUDYING THE LITERATURE ON THE BROWN ACT. A PRIVATE INFORMATIONAL TOUR FOR COUNCILMEMBERS OF WATER FACILITIES OWNED AND OPERATED BY THE WATER DISTRICT THAT PROVIDES WATER SERVICE TO THE CITY. A BIRTHDAY PARTY FOR A MAJORITY OF THE MEMBERS DISCUSS SPECIFIC PUBLIC BUSINESS. A TEXT CHAIN AMONG A MAJORITY OF THE MEMBERS ABOUT AN AGENDA ITEM AT A MEETING IN WHICH THE ITEM WAS CONCERNED. AN EMAIL FROM ONE MEMBER SENTS TO ALL OTHER MEMBERS THAT SHARES THOUGHTS ABOUT AN ITEM CONSIDERED AT A MEETING THAT THE MEMBER CANNOT ATTEND. A MEMBER WHO SITS ON A COMMITTEE SHARES WITH HER FELLOW COMMITTEE MEMBERS THE OPINIONS SHE HAS GATHERED FROM THE MEMBERS WHO DO NOT SIT ON THE COMMITTEE. SOME BASIC TAKE AWAYS TO ERR ON THE SIDE OF CAUTION, THE BROWN ACT MUST BE INTERPRETED LIBERALLY IN FAVOR OF PUBLIC ACCESS AND HIGH ALERT WHEN STAFF OR COUNCILMEMBERS COME TOGETHER, WHEN MEMBERS ARE SHARING VIEWS OF OTHER MEMBERS. THERE ARE NUANCES THAT ARISE. WE WORK ON THESE ISSUES ALL THE TIME. THIS IS THE TEAM THAT WORKS ON BROWN ACT

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ISSUES AND SOMETIMES WE COORDINATE WITH THE CITY CLERK'S OFFICE BUT WE WELCOME YOUR QUESTIONS AND SPECIFIC CONCERNS OR ISSUES THAT YOU MAY HAVE. THAT'S OUR PRESENTATION. [APPLAUSE]

>> MAYOR ISHII: THANK YOU. I DON'T KNOW WHY WE DON'T CLAP FOR EVERY PRESENTATION. I THINK THAT WOULD BE NICE. I HAVE A BUNCH OF QUESTIONS BUT I WANT TO SEE IF MY COLLEAGUES HAVE ANY FIRST. I DIDN'T TURN THAT ON SO... COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU, MADAM MAYOR. THANK YOU FOR THE PRESENTATION. JUST A QUICK QUESTION ON PAGE 15, THE LAST BULLET THAT AN ITEM CAN ONLY GO TO ONE COMMITTEE BEFORE THE GOES TO THE FULL COUNCIL. HOW ARE YOU DEFINING COMMITTEES? ARE THESE STANDING COMMITTEES? OR COULD THEY INCLUDE COMMITTEES LIKE THE FOUR BY FOUR, THE THREE BY THREE AND THE TWO BY TWO? IS IT IN GENERAL THEY CAN NEVER BE DOUBLE REFERRED?

>> STAFF: I'LL TAKE THE FIRST PART. WHEN THIS WAS WRITTEN AND WE ACTUALLY WERE INVOLVED IN DRAFTING WITH THE CITY CLERK'S OFFICE AND A FEW OTHER FOLKS, THE BASIC STRUCTURE OF THE SUBCOMMITTEES, THIS WAS REALLY INTENDED TO APPLY TO THE POLICY COMMITTEES OF THE COUNCIL. IT WASN'T CONTEMPLATED IT WOULD APPLY TO THE FOUR BY FOUR, THE TWO BY TWO AND THOSE OTHER -- DO WE CALL THOSE COMMITTEE SAID -- COMMITTEES? THIS WAS REALLY SPECIFICALLY WRITTEN TO DEAL WITH A POLICY COMMITTEES BECAUSE THERE WAS A TIME THAT THERE WAS NO POLICY COMMITTEE. SO IN CAN I CREATING --

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KIND OF CREATING THE STRUCTURE, WE WERE THINKING ABOUT HOW TO AVOID A SITUATION WHERE A QUORUM IS MEETING SERIALLY BASICALLY. DO YOU WANT TO THE ADD TO THAT, SAM? I'M SORRY, WHAT WAS THE SECOND PART OF THE QUESTION?

>> I. TREGUB: I THINK YOU ANSWERED IT. I WAS WONDERING IF THERE ARE THEY CAN ONLY BE DISCUSSED BY ONE COMMITTEE AT A TIME OR BUT I THINK YOU ANSWERED IT MAY BE AS PART OF THE FIRST QUESTION.

>> MAYOR ISHII: OTHER QUESTIONS? SORRY, COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: THANK YOU AND THANK YOU SO MUCH FOR THE PRESENTATION. WHEN YOU ARE DESCRIBING THE HUB AND SPOKE MEETING, IT SAYS EVEN A MEMBER OF THE PUBLIC CAN SERVE AS THE HUB. BUT BECAUSE THE PUBLIC ISN'T BOUND BY THE BROWN ACT AND COUNCIL ISN'T NECESSARILY TOLD WHICH COUNCILMEMBER THE PUBLIC MEMBER HAS TALKED TO, HOW DOES THAT WORK? IS IT ONLY IF THE PUBLIC SHARES THE PERSPECTIVE OF THE OTHER COUNCILMEMBERS? OR CAN THE PUBLIC CANNOT TALK TO MORE THAN FOUR COUNCILMEMBERS ON A SPECIFIC ISSUE?

>> STAFF: I THINK IT'S AN IMPORTANT POINT IN THAT A MEMBER OF THE PUBLIC COULD INDIVIDUALLY TALK TO THE COUNCILMEMBERS. I THINK IN THE HUB AND SPOKE MODEL, PARTICULARLY WITH A THIRD PARTY, WHERE THERE IS RELAYING AND CONSENSUS BUILDING THAT THAT WOULD HAPPEN THERE.

>> C. LUNAPARRA: SO FOR EXAMPLE, TO MAKE THAT MORE TANGIBLE,

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LET'S SAY THERE'S A

>> MAYOR ISHII: THERE'S A COMMUNITY MEMBER ADVOCATING ON AN ISSUE AND THEY WENT TO FIVE OF US TO LET'S KNOW ABOUT THE ISSUE. IT'S OKAY IF THEY SHARE THEIR OPINION, IF THEY SAY COUNCILMEMBER "X" TOLD ME THEY THINK THIS, WHAT DO YOU THINK ABOUT THAT, THAT WOULD ESSENTIALLY BE CREATING, COULD BE CREATING A SERIAL MEETING IF THAT HAPPENS AMONGST FIVE COUNCILMEMBERS?

>> STAFF: CORRECT.

>> C. LUNAPARRA: CAN I FOLLOW-UP. IF THE A MEMBER OF THE PUBLIC IS THEMSELVES FORMING CONSENSUS WITHOUT TELLING THE OTHER COUNCILMEMBERS WHAT THE OTHERS SAID, IS THAT -- DOES THAT MAKE SENSE? IF THERE IS A SAY A ON A PROJECT, A ZAB APPEAL, THE DEVELOPER IS TALKING TO FIVE OR MORE COUNCILMEMBERS AND EACH INDIVIDUALLY NOW THAT PERSON KNOWS THAT THE MAJORITY OF THE COUNCIL SUPPORTS ONE THING BUT THE COUNCILMEMBERS DON'T KNOW THAT A MAJORITY OF THE COUNCIL SUPPORTS THAT THING.

>> STAFF: RIGHT. I THINK WHAT THE RULE IS DESIGNED TO PREVENT IS A SITUATION WHERE THE QUORUM OF THE COUNCIL IS COMMUNICATING AMONGST ITSELF. SO THAT WOULD BE THE KIND OF KEY, I THINK MISSING INGREDIENT IN THAT SCENARIO.

>> C. LUNAPARRA: OKAY. THANKS.

>> MAYOR ISHII: YEAH, THAT'S A GREAT QUESTION. WE DON'T ALWAYS KNOW WHO A COMMUNITY MEMBER IS SPEAKING TO. AND YOU WANT TO BE

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CAREFUL ABOUT THAT. YOU ANSWERED THE QUESTION. THANK YOU.

>> STAFF: THIS IS HELPFUL. EXCELLENT QUESTION.

>> S. O'KEEFE: I'M TRYING TO THINK OF PRACTICAL GUIDELINES. LIKE WOULD IT BE IS IT FAIR TO SAY TALK TO ANY MEMBER OF THE PUBLIC YOU WANT BUT IF THEY START TO LIKE IF THEY START TO TELL ME WHAT OTHER PEOPLE SAID OR THINK, I SHOULD STOP THEM? LIKE IS THAT THE GOLDEN RULE FOR THIS, TO DEAL WITH THIS ISSUE?

>> STAFF: I THINK THAT'S RIGHT. O'KEEFE I DON'T WANT TO HEAR WHAT --

>> S. O'KEEFE: JUST DON'T SAY THAT.

>> STAFF: OR INTRODUCING, WHEN YOU GET INTO THE DISCUSSION, SAY YOU MAY OR MAY NOT HAVE TALKED TO OTHER COUNCILMEMBERS, I DON'T WANT TO REALLY PARTICIPATE IN ANY DISCUSSIONS.

>> S. O'KEEFE: BETTER TO BE PREEMPTIVE, THAT WOULD BE THE BEST PRACTICE TO AVOID THE ISSUE?

>> STAFF: YEAH.

>> S. O'KEEFE: THANKS.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB, YOUR MIC IS ON STILL. ANYONE ELSE HAVE QUESTIONS? OKAY, I HAVE SOME QUESTIONS. SO CAN YOU GIVE US SOME EXAMPLES OF WOULDN'T BE APPROPRIATE AT A GATHERING HOSTED BY SAY ANOTHER ORGANIZATION? BECAUSE FOR INSTANCE SOMETIMES THEY HAVE US COME AND SPEAK ABOUT SOMETHING GOING ON. IF IT'S SOMETHING THAT'S ALREADY HAPPENED IT'S

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DIFFERENT THAN IF IT'S COMING UP. I THINK GIVING TANGIBLE EXAMPLES AND ADVICE ON HOW TO DEAL WITH IT IS VALUABLE.

>> STAFF: I WOULD CAVEAT BY SAYING EACH BROWN ACT SCENARIO ARE FACT SPECIFIC. IT CAN BE DIFFICULT TO GIVE GENERAL ADVICE ON EVERYTHING. AS A GENERAL MATTER OF THE RULES YOU ARE PROHIBITED FROM DISCUSSING MATTERS WITHIN THE JURISDICTION NOT AS PART OF A FORMAL PART OF THE PROGRAM. IF YOU ARE MINGLING DURING THE EVENT AND DISCUSSING AMONGST A QUORUM OF THE MEMBERS THAT WOULD BE THE MAIN AREA TO WATCH OUT FOR.

>> MAYOR ISHII: SO FOR EXAMPLE, LIKE SAY WE WERE SPEAKING ON A PANEL WITH SOMEONE NOT IN THE BROWN ACT CIRCLE BUT SHARING INFORMATION ON AN ITEM COMING UP. IF WE SHARE THE INFORMATION ITSELF VERSUS LIKE SHARING THE INFORMATION PLUS OUR OPINION ON IT?

>> STAFF: YEAH, I THINK THE BROWN ACT CONTEMPLATES PARTICIPATION ON PANELS, YOU KNOW, BEING PART OF THE EXEMPTION. I THINK IT WOULD BE HELPFUL TO SPEAK TO OUR OFFICE BEFORE ATTENDING SOMETHING LIKE THAT.

>> MAYOR ISHII: OKAY. AND THEN, IS IT POSSIBLE, I KNOW YOU MENTIONED YOU CAN'T SWAP OUT PEOPLE ON THE BROWN ACT CIRCLE. LET'S SAY AN ITEM GETS DECIDED IS A DIFFERENT ITERATION COMING BACK LATER. CAN YOU SPEAK TO THAT PLEASE?

>> STAFF: SURE. IT CAN BE TRICKY TO DRAW A LINE WHERE ONE ITEM

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BECOMES ANOTHER. I THINK IT IS NOT UNCOMMON THOUGH FOR SUBSEQUENT ITERATIONS OF AN ITEM TO BE PART OF THAT EARLIER DISCUSSION. VERY MUCH PART OF THAT SAME TOPIC. AND OBVIOUSLY, IT'S NOT REALLY POSSIBLE TO BREAK EVERY SINGLE CONVERSATION UP INTO A SEPARATE, SILOED TOPIC BUT SOMETHING TO BE ON THE LOOKOUT FOR. AND I THINK SO THE BEST PRACTICE IS NOT BRING NEW PEOPLE IN WHERE THERE'S YOU KNOW SUBSEQUENT DISCUSSIONS THAT HAVE ANY KIND OF YOU KNOW FIRM TIE IN TO A PRIOR ITEM.

>> MAYOR ISHII: CAN YOU SPEAK TO MORE ABOUT WHAT HAPPENS IF YOU VIOLATE THE BROWN ACT AND IF THIS IS SOMETHING THAT'S HAPPENED HERE BEFORE? JUST A LITTLE HISTORY.

>> STAFF: SURE. THE PRIMARY WAY THAT YOU KNOW SUITS ARE BROUGHT IS YOU KNOW A MEMBER OF THE PUBLIC OR OTHER COMPLAINANT WILL SUBMIT A DEMAND LETTER TO THE CITY AND ASK THE CITY CORRECT OR CEASE AND DESIST THE ACTIVITY THAT VIOLATES THE BROWN ACT. IF THEY AREN'T SATISFACTORY TO THE COMPLAINANT, THEY CAN FILE A LAWSUIT. CERTAIN VIOLATIONS OF THE ACT CAN LEAD TO REPEATING OF ACTIONS, MAYBE UNDER MORE PROPER PROCEDURES OR JURISDICTIONS CAN BE REQUIRED TO FORMALLY DISAVOW CERTAIN PRACTICE. MAYBE TAKING PUBLIC COMMENT IN A WAY THAT DIDN'T COMPLY WITH THE BROWN ACT. THOSE ARE THE MAIN EXAMPLES THE CHALLENGES AND COMPLAINTS AND ENFORCEMENT MANIFEST THEMSELVES. AS STEVEN NOTED, THE PROVISIONS ARE THERE. I THINK IT'S VERY INFREQUENT AND RARE FOR THOSE TO BE

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SORT OF UTILIZED BUT I THINK THEY SPEAK TO THE SEVERITY AND IMPORTANCE THE LEGISLATURE PLACED ON THE OPENNESS OF PUBLIC MEETINGS AND COMPLIANCE WITH THE BROWN ACT.

>> MAYOR ISHII: AND YOU MENTIONED SOCIAL MEDIA POSTS BEING BETTER TO KEEP THEM GENERAL NOT ON SPECIFIC ITEMS. CAN YOU SAY A LITTLE BIT MORE ABOUT THAT AND LIKE WHAT HAPPENS ABOUT AFTERWARDS? I THINK IT IS IMPORTANT TO LET THE PUBLIC KNOW ABOUT ITEMS COMING FORWARD. AND --

>> STAFF: SURE. I CAN SPEAK A LITTLE MORE ABOUT THAT. SO IT ISN'T A BROWN ACT VIOLATION TO SPEAK ON SOCIAL MEDIA INDIVIDUALLY ABOUT A SPECIFIC AGENDA ITEM OR EVEN NECESSARILY HOW YOU PLAN TO VOTE ON IT. BUT WHAT OUR CONCERN IS THAT IF IT'S PUBLISHED SOMEWHERE THE MAYOR THINKS A CERTAIN WAY ABOUT AN ITEM AND SOME OTHER COUNCILMEMBER POSTED A DIFFERENT PLACE ABOUT WHAT SHE THINKS ABOUT AN ITEM, IT COULD CREATE THE SORT OF HUB AND SPOKE. SO REALLY, WHAT OUR CONCERN THERE IS WITH THE HUB AND SPOKE BUT IN TERMS OF SIMPLY INFORMING THE PUBLIC ABOUT UPCOMING ITEMS AND ENCOURAGING PEOPLE TO COME TO A MEETING IS COMPLETELY FINE. AND IF YOU HAVE ANY QUESTIONS ABOUT A SPECIFIC SITUATION, FEEL FREE TO CONTACT US AND WE CAN NOODLE THROUGH IT WITH YOU.

>> STAFF: THAT'S ABSOLUTELY RIGHT. ONE THING I WOULD PUT INTO MIX, IF YOU ARE POSTING ON SOCIAL MEDIA OR WRITING AN ARTICLE ABOUT A QUASI-JUDICIAL DECISION THAT IS LIKELY NOT APPROPRIATE.

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BUT YOU HAVE WHY DISCRETION TO WRITE ABOUT A ZONING ORDINANCE AS LONG AS YOU ARE ACTING IN YOUR LEGISLATIVE CAPACITY, YOU HAVE A LOT MORE FLEXIBILITY TO EXPRESS YOUR OPINIONS. BUT IF -- BUT BECAUSE YOU ALSO SIT AS A JUDGE IN YOUR QUASI-JUDICIAL CAPACITY YOU WILL DO THAT LATER ON TONIGHT FOR EXAMPLE ON AN ITEM, YOU SHOULD NOT EXPRESS YOUR OPINIONS OR THOUGHTS OR HOW YOU ARE GOING TO VOTE FOR SOMETHING ON SOCIAL MEDIA OR A NEWSPAPER ARTICLE OR ANYTHING OF THAT NATURE.

>> MAYOR ISHII: THAT'S HELPFUL. I THINK IT'S GOOD FOR STAFF TO KNOW THAT TOO SO THEY DON'T ACCIDENTALLY SPEAK ON BEHALF OF THEIR COUNCILMEMBER OR MYSELF. SO FOR THE TELECONFERENCING SLIDE, YOU TALKED ABOUT IT CAN ONLY HAPPEN IF THE PUBLIC MAY ATTEND IN PERSON OR VIA TELECONFERENCE, DOES THAT MEAN IF THERE IS A MEETING WITH COUNCILMEMBERS ARE PARTICIPATING VIA TELECONFERENCING THEN THE PUBLIC NEEDS TO BE ABLE TO PARTICIPATE IN TELECONFERENCING. IF IT'S ENTIRELY IN PERSON, IT'S OKAY IF THERE IS NO TELECONFERENCING ASPECT FOR THE PUBLIC?

>> STAFF: CORRECT.

>> MAYOR ISHII: OKAY. AND THEN, CAN YOU ELABORATE ON THE TWO TYPES OF PUBLIC COMMENT? I THOUGHT THAT WAS INTERESTING. I THINK THAT WAS 21.

>> STAFF: YES. SPECIFIC COMMENT IS SPECIFIC COMMENT ON AGENDA ITEMS. THAT COMMENT CAN BE LIMITED ONLY TO DISCUSSING THE

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SPECIFIC ITEM ON THE AGENDA, WHATEVER IT IS. THE GENERAL PUBLIC COMMENT IS ANY MATTER WITHIN THE JURISDICTION OF THE BODY. IT'S A LITTLE MORE GENERAL, BUT IT ISN'T NECESSARILY ANYTHING. AND IN TERMS OF THE RULES UNDER THE FIRST AMENDMENT, A COUNCILMEMBER MEETING IS CONSIDERED A LIMITED PUBLIC FORUM. IT'S ALLOWED TO PROHIBITS SPEECH THAT IS OFF-TOPIC. BUT IT JUST CAN'T HAVE ANY RESTRICTIONS BASED ON VIEWPOINT.

>> MAYOR ISHII: SO FOR EXAMPLE, IF SOMEONE CAME TO COUNCIL TO GIVE YOU A RIDICULOUS ONE, WHY AREN'T YOU MAKING IT SUNNY, THIS IS SOMETHING NOT RELEVANT, WE DON'T HAVE CONTROL OVER IT. WE'RE ALLOWED TO LIMIT THE SPEECH.

>> STAFF: ANY THOUGHTS ON THAT ONE?

>> STAFF: I THINK AS A GENERAL MATTER PARTICULARLY FOR GENERAL PUBLIC COMMENT PERIOD IT'S BEST TO ERR ON THE SIDE OF PERMITTING THE COMMENT. OBVIOUSLY, THE COUNCIL HAS REASONABLE TIME LIMITS. SOMEONE WOULD NOT BE ABLE TO SPEAK FOR 45 MINUTES ON THE DESIRE FOR THE WEATHER TO BE REGULATED. SOMEONE COULD ARGUE THERE ARE RELEVANT TIES TO CITY POLICY, CLIMATE CHANGE, YOU KNOW, YOU NAME IT. AS A GENERAL MATTER, I THINK WE ADVISE YOU TREAD CAREFULLY ON REGULATION OF THE GENERAL PUBLIC COMMENT.

>> MAYOR ISHII: OKAY. THAT MAKES SENSE. THANK YOU, I APPRECIATE YOU FOR HUMORING ME. IN YOUR REAL-LIFE EXAMPLES, SLIDE 26, YOU TALK ABOUT YOU GIVE SOME EXAMPLES HERE. ONE IS A PRIVATE

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INFORMATIONAL TOUR FOR COUNCILMEMBERS OF WATER FACILITIES OWNED AND OPERATED BY THE WATER DISTRICT THAT PROVIDES SERVICES TO THE CITY. FOR EXAMPLE, IF THEY ARE TALKING ABOUT THAT WATER FACILITY AND LIKE HOW TO LEGISLATE IT, IS THAT WHAT THE EXAMPLE MEANS?

>> STAFF: JUST HAVING THAT INFORMATIONAL TOUR, I THINK SHOULD BEST PRACTICES WOULD WARRANT THAT WOULD BE NOTICED AS A MEETING. BECAUSE IT'S GOING TO BE REALLY HARD TO JUST BE TAKING IN THE INFORMATION AND THERE'S GOING TO BE INSTANCES WHERE YOU WILL WANT TO HAVE SOME DISCUSSIONS. BUT THAT DOESN'T MEAN THAT A LESS THAN A QUORUM COULD GO. BUT BEST PRACTICES WARRANT IF IT'S GOING TO BE A MAJORITY OF THE COUNCIL GOING ON ONE OF THESE INFORMATIONAL OUTINGS WITH -- AND THIS IS A WATER FACILITY THAT'S OWNED AND OPERATED BY THE WATER DISTRICT, THAT PROVIDES, SO IT'S WITHIN THE CITY'S JURISDICTION. I THINK IT WOULD BE A GOOD IDEA TO NOTICE THIS AS A PUBLIC MEETING AND THEN YOU ALSO HAVE GREATER FLEXIBILITY. BECAUSE I THINK SO YOU ARE GOING TO BE-- I'VE SEEN REAL EXAMPLES OF THIS WHERE FOR EXAMPLE, IT'S A CONTROVERSIAL DEVELOPMENT PROJECT AND A SITE VISIT BECOMES REALLY IMPORTANT AND THE COUNCIL WANT TO BECAUSE OF THE EFFICIENCY AND THE ECONOMY OF TIME, STAFF SAYS WE'LL TAKE THE WHOLE COUNCIL ON A SITE VISIT AND THEY NOTICE THAT AS A PUBLIC MEETING AND GO ABOUT IT THAT WAY.

>> MAYOR ISHII: THANK YOU. THAT'S HELPFUL. MY TIME IS RUNNING

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OUT. I A FEW MORE QUESTIONS. SO THIS ONE SAYS A TEXT CHAIN AMONG THE MAJORITY OF THE MEMBERS ABOUT AN AGENDA ITEM DURING THE MIGHT. IT COULD BE YOU ARE IN A SPECIFIC BROWN ACT CIRCLE AND SOMEONE IS TEXTING OUTSIDE OF THE CIRCLE, THAT COULD ALSO BE A VIOLATION?

>> STAFF: POTENTIALLY, YES.

>> MAYOR ISHII: OKAY. AND THIS ONE EMAIL FROM ONE MEMBER SENT TO ALL OTHER MEMBERS THAT SHARES THOUGHTS ABOUT AN ITEM CONSIDERED AT A MEETING THE MEMBER CANNOT ATTEND. WHAT IF IT'S AN EMAIL SENT TO ONE PERSON WHICH IS ABOUT A GENERAL THOUGHTS, NOT ON A SPECIFIC ITEM?

>> STAFF: TELL ME WHAT THAT EXAMPLE IS AGAIN ONE MORE TIME.

>> MAYOR ISHII: SO LIKE, IF THERE'S A COUNCILMEMBER WHO IS IN TOUCH WITH OTHER COUNCILMEMBER THAT'S PART OF A CONVERSATION THAT'S SMALLER THAN A QUORUM, BUT IT'S ABOUT GENERAL ISSUES, NOT ABOUT LIKE A SPECIFIC ITEM?

>> STAFF: LESS THAN A QUORUM WOULD NOT BE AN ISSUE.

>> MAYOR ISHII: BUT IT BECOMES MORE I GUESS BECAUSE

>> STAFF: IF THERE IS A CUMULATIVE?

>> MAYOR ISHII: MAYBE -- I NEED TO HAVE -- I'LL GIVE YOU A MORE SPECIFIC EXAMPLE ANOTHER TIME BECAUSE I'M RUNNING OUT OF TIME. SO THE OTHER THING IS AT OUR RETREAT WE TALKED ABOUT BEING CLEAR ABOUT WHO IS IN OUR BROWN ACT CIRCLES AS A WAY TO PREVENT THAT.

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I THINK IT WOULD BE HELPFUL FOR US TO SHARE THE COMMITTEES AGAIN WITH EVERYONE. ALL THE STAFF KNOWS TOO, LIKE WHO IS ON WHICH COMMITTEES. BUT I'M WONDERING IF YOU CAN GIVE US OTHER BEST PRACTICES FOR MAINTAINING THE BROWN ACT CIRCLE SPECIFICALLY CONSIDERING WE HAVE STAFF. I KNOW WE HAVE A LOT OF STAFF ON, AGAIN, STAFF, THANK YOU FOR BEING HERE.

>> STAFF: SURE, A COUPLE OF THOUGHTS. YOU MENTIONED STAFF. I THINK IT'S IMPORTANT TO NOTE STAFF CAN BE INTERMEDIARIES IN A SERIAL MEETING CHAIN. MAKING SURE STAFF ARE AWARE AS WELL OF WHICH MEMBERS ARE CONVERSING ALREADY ABOUT WHICH TOPICS. AND BEING VERY COMMUNICATIVE AMONGST YOURSELVES WHEN INITIATING CONVERSATIONS ABOUT WHO YOU HAVE CONFERRED WITH SO YOU ARE NOT WALKING INTO A MEETING AND AN HOUR INTO TALKING ABOUT IT YOU SAY BY THE WAY I TALKED TO FIVE OR FOUR OTHER PEOPLE ABOUT THIS. I THINK BEING PROACTIVE, UPFRONT AND MAKING SURE STAFF ARE AWARE.

>> MAYOR ISHII: ANY OTHER ADDITIONAL THINGS WE SHOULD CONSIDER WHEN LOBBYISTS ARE INVOLVED?

>> STAFF: I THINK THE SAME ADVICE AROUND THE HUB AND SPOKE MODEL IS ONE TO WATCH OUT FOR. SOMEONE COMMUNICATING TO THE CITY ON A TOPIC CAN PLAY THE INTERMEDIARY ROLE, BEING MINDFUL OF WHAT THEY ARE SAYING ABOUT OTHER MEMBERS' POSITIONS AND OPINIONS.

>> MAYOR ISHII: THANK YOU. ANY OTHER QUESTIONS FROM MY COLLEAGUES? SORRY, COUNCILMEMBER TAPLIN.

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>> T. TAPLIN: HI, THANK YOU, EVERYONE. I HAVE ONE QUESTION. IT'S BEEN A WHILE SINCE 2020 AND I WAS THE NEW PERSON THAT YEAR, I BENEFITED FROM HAVING ON-BOARDING FROM EACH DEPARTMENT, I WAS THE ONLY PERSON THERE. IT WAS DURING COVID. IT WAS PREDOMINATED BY THE EOC. I WANDER IF THE CITY ATTORNEY OFFICE OFFERS ON BOARDING FOR NEW MEMBERS?

>> STAFF: WE DO.

>> MAYOR ISHII: WE RECEIVED A BROWN ACT ON-BOARDING, I FELT MORE EXAMPLES WE WEREN'T ABLE TO COVER, THIS COVERED A BROADER RANGE. MANY OF US WENT TO THE CALIFORNIA LEAGUE OF CITY'S TRAINING WHICH COVERED SOME OF THIS. I THINK IT'S HELPFUL TO HEAR DIRECTLY FROM ALL OF YOU. AND I THINK LIKE I SAID, TO SHARE THE INFORMATION WITH STAFF, MAKE SURE WE'RE ON THE SAME PAGE. I THINK IT'S ALWAYS GOOD TO GET A REFRESHER COURSE. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I BELIEVE I KNOW THE ANSWER TO THIS BUT I WANT TO MAKE SURE. ON SOCIAL MEDIA, IF FOR EXAMPLE A QUORUM OF US WENT TO A RALLY ON THE U.C. CAMPUS NOT RELATED TO THE CITY OF BERKELEY BUSINESS, AND THEN ON SOCIAL MEDIA WE TAGGED THE OTHER COUNCILMEMBERS IN A PHOTO AT THIS RALLY, WOULD THAT VIOLATE THE BROWN ACT?

>> STAFF: THAT'S A GREAT QUESTION. DO YOU WANT TO TAKE THAT? PROBABLY NOT.

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>> STAFF: SURE. I CAN TAKE THIS ONE. SO I MIGHT WANT TO THINK ABOUT THIS A LITTLE MORE. BUT I WOULD THINK THAT THAT PROBABLY IS NOT A VIOLATION OF THE BROWN ACT. BECAUSE THE LANGUAGE IN THE LAW SPECIFICALLY IS ABOUT DISCUSSING, DELIBERATING OR TAKING ACTION ON AN ITEM OR A MATTER WITHIN THE LEGISLATIVE BODY'S JURISDICTION. IF YOU WERE GOING TO A RALLY AND JUST THERE BUT NOT TALKING TO EACH OTHER AND JUST PUTTING EACH OTHER IN A PICTURE, I'M NOT SURE IF THAT WOULD COUNT AS DISCUSSING, DELIBERATING OR TAKING ACTION. BUT WE CAN THINK ABOUT THAT SOME MORE. AND GET BACK TO YOU ON IT.

>> C. LUNAPARRA: THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU. JUST WANTED TO CONFIRM KIND OF TWO HYPOTHETICAL SITUATIONS. SO AN ITEM IS COSPONSORED BY FOUR MEMBERS OF THE COUNCIL, MOVES TO A POLICY COMMITTEE, IT IS APPROPRIATE, YOU KNOW, NOTWITHSTANDING, NOT MORE THAN ONE CO-SPONSOR OF THAT ITEM MUST BE ABLE TO ATTEND THE DISCUSSION. BUT WOULD IT BE APPROPRIATE FOR MEMBERS OF THE COMMITTEE THAT WERE NOT PART OF THE DRAFTING OF THAT ITEM TO THEN DISCUSS AS A FULL BODY ANY POTENTIAL AMENDMENTS TO THE ITEM. I ASSUME THE ANSWER IS YES BECAUSE THAT IS HOW WE CAN GET TO POTENTIALLY A QUALIFIED POSITIVE RECOMMENDATION. MY SECOND QUESTION IS IF MULTIPLE MEMBERS OF THE BODY HAVE AMENDMENTS TO AN ITEM THAT THEY WISH TO

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DISCUSS, I WANT TO CONFIRM THAT THAT IS APPROPRIATE PARTICULARLY IN SO FAR IS AS MAYBE CREATING A COMBINED MOTION THAT INCLUDES ALL OF THE DIFFERENT AMENDMENTS AS ONE PACKAGE OF AMENDMENTS THAT THEN IS VOTED ON BY THE COMMITTEE.

>> STAFF: QUESTION, CLARIFYING QUESTION, ARE THESE DISCUSSIONS HAPPENING IN A PUBLICLY NOTICED POLICY COMMITTEE MEETING?

>> I. TREGUB: YES.

>> STAFF: THAT'S FINE.

>> MAYOR ISHII: OKAY. I THINK THAT MIGHT BE ALL OF THE QUESTIONS. I REALLY APPRECIATE IT. IT'S NOT JUST ABOUT US MAKING SURE WE'RE IN LINE, IT KIND OF ENABLES US TO FEEL OUT AND ABOUT IN PUBLIC TO NOT BE AFRAID TO DO THAT. SOMETIMES I THINK IT'S PUNITIVE AND I DON'T MEAN IT TO BE THAT WAY. IT'S GOOD TO UNDERSTAND WHAT WE'RE SUPPOSED TO DO AND WE UNDERSTAND THE EXPANSIVENESS AS WELL. I REALLY APPRECIATE YOU ALL GOING OVER THIS WITH US. AND THANK YOU SO MUCH FOR PUTTING THE PRESENTATION TOGETHER. IT'S REALLY VERY CLEAR AND WE KNOW WHO OUR EXPERTS ARE. IF WE HAVE OTHER QUESTIONS, WE'LL GO THROUGH FARIMAH AND CHECK IN ON THAT. I THINK THAT IS IT. AND IS THERE A MOTION TO ADJOURN?

>> SO MOVED. NEVERMIND.

>> PUBLIC COMMENT.

>> MAYOR ISHII: OH, YES, SPEAKING OF. IS THERE PUBLIC COMMENT?

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>> CLERK: ONE HAND RAISED ON THE ZOOM. WE CAN GO TO CAROL.

>> CALLER: THANK YOU. I WAS WONDERING ABOUT THE IMPACT OF THE SAME PUBLIC COMMENT HEARD BY TWO DIFFERENT POLICY COMMITTEES. WITH DIFFERENT COUNCILMEMBERS ON IT AND IT ARISING IN DISCUSSION, SO THERE IS ACTUALLY A QUORUM OF COUNCIL THAT HAS ENGAGED IN SOME DISCUSSION, HOWEVER BRIEF, ON A PARTICULAR ISSUE. AND IF THAT ALL IS IMPACTED UNDER THE BROWN ACT.

>> CLERK: IS THAT YOUR FULL COMMENTS, CAROL?

>> CALLER: THAT'S MY FULL COMMENT.

>> CLERK: THANK YOU.

>> STAFF: DOES THE COUNCIL WISH US TO REPLY?

>> MAYOR ISHII: GO AHEAD PLEASE.

>> STAFF: THAT WOULD BE OKAY UNDER THE BROWN ACT BECAUSE IT WOULD BE TAKING PLACE AT A NOTICED MEETING IS MY UNDERSTANDING.

>> MAYOR ISHII: I THINK IT CROSSES OVER COUNCILMEMBER TREGUB'S QUESTION AS WELL. IS THERE OTHER PUBLIC COMMENT?

>> CLERK: NO OTHER HANDS RAISED.

>> MAYOR ISHII: THANK YOU VERY MUCH. MY APOLOGIES, THE THERE A MOTION TO ADJOURN?

>> STAFF: SO MOVED.

>> MAYOR ISHII: SECOND? A SECOND FROM COUNCILMEMBER BARTLETT. CAN WE ADJOURN UNANIMOUSLY?

>> CLERK: THERE IS NOBODY REMOTE. YEAH.

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>> MAYOR ISHII: SHE'S NOT ON ZOOM. THANK YOU. WE ARE ADJOURNED THEN.

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